

26PR00323 Estate of Daniel Anthony Andrade

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-08-17

Motion: Petition for Letters of Administration

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Tentative Ruling: Estate of Daniel Anthony Andrade

Case Number

26PR00323

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 08/17/2026 - 08:30

Nature of Proceedings

Petition for Letters of Administration

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Publication. No proof of publication was filed. Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. If the city of decedent's residence has no newspaper adjudicated as a newspaper of general circulation, publication must occur "in a newspaper of general circulation in the county which is circulated within the area of

the county in which the decedent resided or the property is located.” (Prob. Code, §8121(b).)

It is unacceptable to merely file a copy of the newspaper clipping as proof of publication. A Petitioner must obtain an affidavit executed under the penalty of perjury by the person with authority to affect publication at the newspaper. (Prob. Code, §8124.)

PUBLICATION MUST OCCUR IN THE SANTA MARIA TIMES.

Duties and Liabilities Acknowledgement (Form DE-147). The proposed personal representative must fill out and sign this form and submit it to the court. (Prob. Code, § 8404.) No such form was submitted.

Nomination of Administrator. Petitioner does not have priority of administration over other siblings pursuant to Probate Code section 8461. Please submit a nomination from all those with equal or greater priority. A written declination must be filed by or on behalf of an individual who is entitled to priority for issuance of Letters of administration but does not desire to act, or evidence must be produced that the person with priority is not competent under Probate Code section 8402 or refuses to act. (Local Rule 1752(d)1.)

Supplement to the Petition. The following allegations must be made without creating ambiguity, but were left blank or improperly alleged and must be corrected by supplement:

Paragraph 5a(5) (a) or (b) or 5a(6)

Proposed Order (Form DE-140). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on August 14, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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